WILLYE CHIRAU
versus
THE STATE

HGH COURT OF ZIMBABWE
MANZUNZU J
Harare, 24 December 2025 & 9 February 2026

Bail

Applicant, in person
T Mukuze, for the respondent

MANZUNZU J**:** The applicant who appeared in person on 24 December 2025 applied for bail pending trial based on changed circumstances. After hearing the applicant and the response by the State I dismissed the application and gave my reasons extempore.

The applicant has asked for written reasons. These are they.

The applicant is facing a charge of robbery as defined under section 126 of the Criminal Law Code. He was arrested in November 2024. On 16 April 2025 the applicant filed an application for bail pending trial before this Honourable Court which was dismissed on the basis that he is a flight risk and would abscond coupled by the need that investigations were not yet complete.

On 7 October 2025 the applicant lodged another application for bail based on changed circumstances which he described as "effluxion of time completed with completion of investigations." The application was opposed. The application was heard on 17 October 2025 and it was dismissed.

The present application was filed on 4 December 2025. It was opposed by the State. The applicant in moving this application said when the State opposed bail in October 2025 there was a promise that he was going to get his trial date. In fact, that the trial was to commence on his next court date. The trial did not kick off as was assured by the State for reasons explained to the applicant at the trial court.

The applicant said the failure of his trial to commence is a changed circumstance which must be considered in his favour. Further that he did not get the State papers as was expected the previous day. It is the delay to commence the trial which the applicant says is a changed circumstance.

The State argued that the delay in trial was not outrageous. This was because the Applicant is jointly charged with 5 others 2 of whom were facing trial in Chinhoyi which has now been completed. The accomplices will now be moved to Harare for a trial date to be set.

Changed circumstances in a bail application refers to significant new facts, developments, or legal arguments that have emerged since a previous bail refusal, justifying a reconsideration of the decision. These, also known as "new facts," must not be a mere repetition of previous arguments but must fundamentally alter the risk profile or legal situation.

The application is based on facts which were not placed before the Judge who determined the previous application and which have arisen or been discovered after the determination." See *S* v *Barros & Ors* 2002 (2) ZLR 17 (H) at 20B-C.

The onus to prove changed circumstances rests with the applicant. The applicant has not shown the court how this time lapse affects the original reasons of his denial of bail. In *Mathuthu* v *The State* HH 182/17 the court said the following.

> "…. whatever amount of time has lapsed, that on its own is not a strong enough reason for bail to be granted. The passage of time should be accompanied by a change in the circumstances that led to the original denial in bail."

There are no cogent grounds upon which bail can be granted based on changed circumstances. For these reasons I dismissed the application.

MANZUNZU J: …….

National Prosecution Authority, the respondent's legal practitioners.